

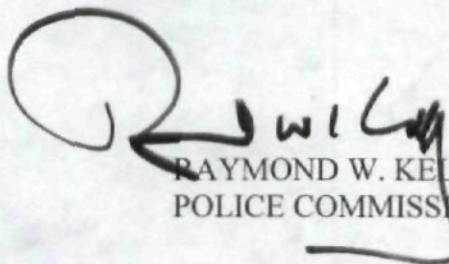


POLICE DEPARTMENT

-----X
In the Matter of the Disciplinary Proceedings :
- against - : FINAL
Police Officer Peter Amador : ORDER
Tax Registry No. 929626 : OF
Bronx Court Section : DISMISSAL
-----X

Police Officer Peter Amador, Tax Registry No. 929626, Shield No. 26879, Social Security No. ending in 6555, having been served with written notice, has been tried on written Charges and Specifications numbered 83211/07 and 85135/09, as set forth on form P.D. 468-121, dated July 26, 2007 and March 19, 2009, and after a review of the entire record, has been found Guilty as Charged on Specification Nos. 1, 2, 4 and 5 in Disciplinary Case No. 83211/07 and, having pled guilty, is found Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 85135/09.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Peter Amador from the Police Service of the City of New York.


RAYMOND W. KELLY
POLICE COMMISSIONER

EFFECTIVE: On May 17, 2011

COURTESY • PROFESSIONALISM • RESPECT



POLICE DEPARTMENT

March 25, 2011

-----X
In the Matter of the Charges and Specifications : Case Nos. 83211/07
- against - : & 85135/09
Police Officer Peter Amador :
Tax Registry No. 929626 :
Bronx Court Section :
-----X

At: Police Headquarters
One Police Plaza
New York, New York 10038

Before: Honorable John Grappone
Assistant Deputy Commissioner - Trials

APPEARANCE:

For the Department: Daniel Maurer, Esq.
Department Advocate's Office
One Police Plaza
New York, New York 10038

For the Respondent: Edgar De Leon, Esq.
26 Broadway – Suite 2100
New York, New York 10004

To:

HONORABLE RAYMOND W. KELLY
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NEW YORK 10038

COURTESY • PROFESSIONALISM • RESPECT

POLICE OFFICER PETER AMADOR

The above-named member of the Department appeared before me on August 17, August 19, October 5, October 6 and November 30, 2010, charged with the following

Disciplinary Case No 83211/07

1 Said Police Officer Peter Amador, assigned to Transit District 12, while off-duty, on or about and between May and June 2006, at a location known to this Department in Queens County, recklessly engaged in conduct which created a substantial risk of serious physical injury to another person, identity known to the Department, by discharging a firearm at said individual *(As amended)*

P G 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
NYS PENAL LAW 120 20 – RECKLESS ENDANGERMENT IN THE FIRST DEGREE

2 Said Police Officer Peter Amador, assigned to Transit District 12, while off-duty, on or about and between May and June 2006, at a location known to this Department in Queens County did intentionally place or attempt to place another person in fear of death, imminent serious physical injury or physical injury *(As amended)*

P G 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
NYS PENAL LAW 120 15 – MENACING IN THE SECOND DEGREE

3 Said Police Officer Peter Amador, assigned to Transit District 12, while off-duty, on or about and between May and June 2006, at a location known to this Department in Queens County, attempted to cause serious physical injury to another person in that he discharged a firearm at another individual, identity known to the Department *(As amended)*

P G 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT
NYS PENAL LAW 110/120 10 – ATTEMPTED ASSAULT IN THE FIRST DEGREE

4 Said Police Officer Peter Amador, assigned to Transit District 12, on or about and between May and June 2006, while off-duty, having been involved in an incident where he discharged his firearm, failed and neglected to notify and request the response of a Patrol Supervisor *(As amended)*

P G 212-29, Page 2, Paragraph 1 – FIREARMS DISCHARGE BY
UNIFORMED MEMBERS OF THE
SERVICE

POLICE OFFICER PETER AMADOR

5 Said Police Officer Peter Amador, assigned to Transit District 12, on or about and between May and June 2006, while off-duty, having been involved in an incident of serious misconduct, did wrongfully fail and neglect to notify the Internal Affairs Bureau (*As amended*)

P G 207-21 – ALLEGATIONS OF CORRUPTION AND SERIOUS
MISCONDUCT AGAINST MEMBERS OF THE SERVICE

6 Said Police Officer Peter Amador, assigned to Transit District 12, while off-duty, on or about and between May and June 2006, at a location known to this Department in Queens County, failed to safeguard his firearm in that he placed said firearm on the top shelf of a closet unsecured and unattended (*As amended*)

P G 204-08, Page 2, Paragraph 7 – FIREARMS GENERAL REGULATIONS

Disciplinary Case No 85135/09

1 Said Police Officer Peter Amador, assigned to Bronx Court Section, on or about November 24, 2008, while on sick report, was wrongfully and without just cause absent from his residence without the permission or authority of said officer's District Surgeon and/or Medical Division Sick Desk Supervisor for a period of approximately one hour and fifteen minutes

P G 205-01, Page 2, Paragraph 4 – REPORTING SICK/PERSONNEL
MATTERS

2 Said Police Officer Peter Amador, assigned to Bronx Court Section, on or about November 24, 2008, caused false entries to be made in Department records in that he stated to Medical Division personnel that he was going to a pharmacy when, in fact, he did not go to a pharmacy

P G 203-10 Page 1, Paragraph 5 – REPORTING SICK/PERSONNEL
MATTERS

The Department was represented by Daniel Maurer, Esq , Department Advocate's Office, and the Respondent was represented by Edgar DeLeon, Esq

The Respondent, through his counsel, entered a plea of Guilty to the subject charges for Disciplinary Case No 85135/09 and Not Guilty to the subject charges for

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Disciplinary Case No 83211/07 A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review

DECISION

The Respondent, having pled guilty, is found Guilty of Specification Nos 1 and 2 in Disciplinary Case No 85135/09 The Respondent is found Guilty of Specification Nos 1, 2, 4, and 5 in Disciplinary Case No 83211/07 The Department moved to dismiss Specification Nos 3 and 6 in Disciplinary Case No 83211/07

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called Yolanda Rivas, Sergeant Karen Roberts and Detective Nicholas Petraco (retired) as witnesses

Yolanda Rivas

Rivas and the Respondent lived together in the past and have a child in common Rivas has two daughters, Rhianna Cruz and Jasmyn Rivas Jasmyn, who is the Respondent's child, suffers from "focal seizures" that prevent her from concentrating in school Rivas resides in Ozone Park, Queens Although not married to the Respondent, Rivas receives monetary support from him

Rivas stated that she was subpoenaed by the Department and did not want to come on her own to testify Rivas testified that prior to appearing before this Court, the

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Respondent gave her a copy of the [*Dias v Consolidated Edison of New York*¹] case [Department's Exhibit (DX) 19] and asked her not to obey the administrative subpoena. In addition, the Respondent also e-mailed Rivas asking her not to testify against him. Rivas said she testified in the Respondent's criminal trial in 2008 and had an opportunity to review her transcript. Rivas explained that she did not want to testify against the Respondent in the present case because, "[I]t's part of my past, and I developed a civil relationship with the Respondent regarding our daughter."

Rivas testified that in March 2005, the Respondent volunteered to move in with her so that they can reconcile their relationship. Rivas was unemployed and attending school. Soon after the Respondent moved in, their relationship began to change. Rivas said their relationship was changing because of the financial difficulties they were facing. Further, in addition to their financial problems, the Respondent was involved with another woman. In November 2005, Rivas was contacted by "Tina." Tina told Rivas she and the Respondent had been together for two years and she was pregnant with his child.

Rivas testified that on May 1, 2006, she was sitting in the living room doing her school work when the Respondent received a phone call from Tina. Aware that it was Tina on the phone, Rivas said, "I told him he doesn't have to warn his girlfriends anymore about me being present when they call him and he should just continue to talk to them." Rivas said the Respondent then became furious, took her school work and threw it across the floor and went into a closet. Rivas then began picking up her school work.

On a floor plan of her apartment (DX 11), Rivas wrote "PA" to indicate where the Respondent was sitting, "YR" to indicate where she was sitting and "K" to indicate where

¹ The *Dias v Consolidated Edison of New York* case is used as support for one who does not want to comply with an administrative subpoena.

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she was kneeling to pick up her school work off the floor Rivas said he was in the closet but she could not see what he was doing because her view was blocked Rivas stated that the Respondent's violent tantrum left her frightened and nervous

As Rivas was kneeling on one knee picking up her school work, she said, "I heard a pop or a boom, I don't know Then I felt -- I heard a pop or a boom, I don't know how else to describe it At the same time, quickly wind near my head go by then I heard something fall on the floor " She said she heard something like a 'clinking ' She said she was shocked and stunned by the loud noise Rivas stated she was on her left knee picking up her papers when she simultaneously heard a "boom" and felt something go by her left ear Rivas further indicated that the closet in which the Respondent went to was on her left-hand side

Looking at a photograph of her apartment (DX 7, DX 7A is the same photograph, enlarged) Rivas indicated that the picture did not depict the apartment as it was when the incident took place on May 1, 2006 She said sold some of the furniture because she needed extra money Two sofas, two tables and two bookcases were sold and therefore not in the picture On May 1, 2006, the bookcases shown in another photograph, taken sometime in 2005 (DX 6), were present in Rivas apartment and were positioned against the wall

On a photograph of Rivas' living room, kitchen and hallway (DX 8, DX 8A is the same photograph, enlarged), Rivas wrote "PA closet" indicating where the Respondent was According to Rivas, a photograph of a small bookcase (DX 9) shows the dust covers on the bookcase in the same position as they were on the day of the incident when she heard the loud bang

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Rivas testified that the closet belonged to the Respondent and he kept his coats, jackets, equipment and his firearm in there. Rivas knew that the Respondent kept his firearm in there prior to May 1, 2006. There was no lock on the closet. Rivas said her mother was a regular guest at her house and on May 1, 2006, her mother was living on the first floor.

Rivas said that after she heard the loud bang, she got off her knee. She recounted, "[the Respondent] was following me with his gun. He looked angry, so I was staring at his face. I smelled smoke, I reacted, I said I am going to call 911." Moreover, the Respondent then pointed the firearm at Rivas and proceeded to follow her. Rivas said he was approximately ten feet from her. Rivas attempted to reach for the phone (DX 12, photo of a cordless phone charger on one of the smaller bookcases), but the Respondent grabbed it and a small struggle ensued. Rivas was unsuccessful in trying to retrieve the phone from the Respondent. Once the Respondent grabbed the phone, he apologized to Rivas and told her he would never hurt her. In addition he said, "If [Rivas] did make the call it would ruin everything." Rivas said the Respondent then picked up the "clinking" object from the living room floor, but she did not know what it was.

Rivas asserted that after this incident, the Respondent called POPPA². She then waited for her sister to arrive and then went to school. She met with her sister's husband at the train station. She did not mention the incident to her sister because she did not want to burden her with this information. Rivas stated her family already disliked the Respondent because of the emotional abuse he put her through.

Rivas stated that on the day of the incident, she told two people what had happened, her classmate Melinda Jimenez and her friend Hector Aponte. On May 2

² Police Organization providing Peer Assistance

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2006, the day after the incident, Rivas called Transit District 12 and spoke with "Sergeant Santiago " Rivas asked Santiago, "[W]hat would happen if I were to report being shot at by a police officer And she told me there would be some severe ramifications '

Santiago then gave Rivas the telephone number for the Internal Affairs Bureau (IAB)

However, Rivas did not call IAB

Rivas stated that she did not contemplate moving in with her mother or sister because she did not want them to find out and because she did not want to encroach on their living space Rivas spoke with her counselor, Elaine Distasi, on May 4 2006 and told her about the incident Distasi advised her that she should call 911

Rivas testified that after the incident, her relationship with the Respondent became even more strained On December 4, 2006, the Respondent and Rivas were involved in a verbal argument The Respondent was going away on vacation and was going to return on December 14, 2006 According to Rivas, she and the Respondent argued

[O]ur financial situation was not that good We had disconnect notices, and here he was going on this vacation for three weeks after he told me there was no money for other utility bills And his argument was that I didn't want him to be with other women or have a good time At the end of it, he said that the only way one of us will be free from one another would be if one of us was dead

Rivas also stated that she had a nightmare in which the Respondent was shooting at her and she was running under the table This nightmare and the argument prompted Rivas to call Transit District 12 again On December 11, 2006, she spoke with Lieutenant Selina Rentas Rivas told Rentas the details of the incident but did not reveal any identifying information When asked why she did not identify herself or the Respondent,

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Rivas responded, "I was torn, I was still in the same predicament I had no other resources, I had no employment, I had nowhere else to go " At that moment, Rivas just wanted to know whether or not it was too late to report an incident that took place six months ago

Unbeknownst to Rivas, her phone call on December 11, 2006, was traced by the Department On December 12, 2006, officers went to Rivas' apartment and explained that they had traced the phone call and that they had identified both parties involved in the incident She testified that the officers recorded her statement and began looking around the house She initially told the officers the firearm discharged sometime in June 2006, but she later amended the date when she spoke with her counselor She called her counselor when she found a hole in the bookcase Her counselor keeps a record of every conversation she has with Rivas, and her counselor advised her that the incident took place on May 1, 2006, not June 2006

On December 14, 2006, the Emergency Service Unit (ESU) and the Evidence Collection Team (ECT) responded to Rivas' apartment They began checking the walls, windows and the furniture However, they did not search the bookcases that were against the wall and between the windows Rivas said they were searching for one of two things, an exit hole of the bullet, or the actual bullet Neither the bullet nor the exit hole was found

Rivas asserted that the Respondent was placed on modified duty the same night The Respondent, two days after being placed on modified duty, asked Rivas if ESU or ECT looked in "the tall bookcases " The Respondent asked Rivas to tell the investigators that his firearm discharged by accident while he was cleaning it Rivas stated that on

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January 1, 2007, while she was in the closet of her bedroom, removing the Respondent's clothes from a wicker basket, she said, "[t]owards the end of the wicker basket, my mother saw something shiny because I guess it was lined with a dark plastic bag, and she asked me what it was, and I picked it up and I put it in my pocket ' She further stated that this "shiny thing" was at the bottom of the Respondent's wicker basket, under his clothes No one, other than the Respondent, used the wicker basket

Rivas acknowledged that the photograph of the spent bullet (DX 10) shows the object she recovered under the wicker basket On January 3, 2007, Rivas called Sergeant Karen Roberts of IAB and told her about the object she had recovered Roberts went to her apartment and asked Rivas where she had recovered it The two of them then proceeded to the tall bookcases Rivas said she may have moved the bookcases around after the initial incident but was not sure However, on January 3, 2007, the bookcases were still between the windows and against the wall, the same location they had been during the initial incident

Rivas testified that on June 20, 2007, she found a hole in the small bookcase (DX 17, DX 14, photograph of hole in side of bookcase) She said this was the bookcase that was closer to her while she was kneeling down and picking up her school work She added that there was sawdust on the books, and some of the books were "torn through" (DX 13 photograph of damaged books in bookcase) Rivas again said that on June 20, 2007, the two bookcases were in the same position as they were on May 1, 2006 Further, Rivas said the books in the bookcase were for leisure reading, and since she was going to school at the time, she did not use any of the books that were in the bookcase In between the bookcase there were also some weights and an exercise mat Rivas did not

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use them during the time period in question. She added that because the bookcase had dust covers on them, she only cleaned the outside and didn't have any reason to clean the inside of it.

When she discovered the damage to the bookcase, Rivas contacted Roberts, Distasi, and her family court lawyer, David Schnall. Prior to the incident, Rivas was aware that the Respondent kept his firearm in the closet, but after the discharge, she asked the Respondent to not keep his firearm in the house anymore. Rivas testified that between May 1, 2006, and December 15, 2006, the only other person who entered the closet was her. She went in there to remove all the "summer stuff" and the Christmas tree. She said in order for her to reach the firearm, she would have had to stand on a ladder because the Respondent kept it in a high location.

On December 15, 2006, Rivas filled out a Domestic Incident Report (DIR) (DX 15 dated December 14, 2006) regarding the incident. On the DIR, she indicated that she was not in fear of her personal safety because the Respondent had his firearm taken by the Department. She further said that after she discovered the hole in the bookcase, she wanted the Respondent arrested because she believed the Respondent wanted to hurt her.

On cross-examination, Rivas stated she testified before a grand jury in a criminal proceeding in July 2007. Rivas did not recall stating in her grand jury testimony whether she actually heard a woman's voice on the line when the Respondent was on the phone on May 1, 2006. The reason Rivas gave for thinking it was a woman's voice was because of their "history of infidelity." Further, when asked the same question during the Respondent's criminal trial, Rivas said she assumed it was a woman's voice. Moreover, in her grand jury testimony, Rivas said that the Respondent, after the phone call "kicked"

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her school work off the table Rivas admitted that when her sister came to her apartment shortly after the incident, she (Rivas' sister) did not smell smoke Rivas said during the struggle over the phone, the Respondent had one hand on his firearm, and with the other, he tried taking away the phone from Rivas Rivas again said she mentioned nothing about the firearm discharge to her sister as they were going to school moments later

Rivas averred the incident took place at approximately 10 30 a m and lasted for approximately 11 minutes Rivas said she also attended class on that day at approximately 12 30 or 1 00 p m She again acknowledged that on the day following the incident -- May 2, 2006 -- she called Transit District 12 via her cellular phone and spoke to Sergeant Santiago Rivas also mentioned this phone call to Roberts and also gave Roberts her cellular phone number Rivas could not recall if Roberts checked her phone records

Rivas stated that she told her sister about the incident sometime before December 2006 She added that the District Attorney's office requested her counselor's notes, but she did not recall submitting it to them She said that, at the time of the incident, her mother was living on the first floor She did not mention the incident to her mother She again acknowledged that she did not feel the need to call the police from May 2006 to December 2006 She said that she was not upset about the Respondent going away on vacation to Florida, but, rather, she was upset because they were having financial problems She added that they were "low on food" and also that there were several "disconnect notices " Rivas indicated that she did not ask the Respondent who he was going with In her grand jury testimony, Rivas said

There was already a strain in the relationship Every
payday he was throwing tantrums That was like every

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other week And we were having financial problems He wasn't able to make the payments We were three or four months behind on our bills Disconnection notices

So December 1st [2006], he was leaving on a three-week cruise, or a two-and-one-half week cruise to somewhere I don't know where, near Florida, and he thought that I was just angry that he didn't want me to have -- he thought that I just didn't want him to have a good time My concern was, you know, where did the money come from if we have no food in the refrigerator

She further stated that before she called Transit District 12 on December 11, 2006, she wanted to leave the apartment but she didn't know how she was going to support herself financially as a single mother with two children

After ESU and ECT conducted their investigation on December 14, 2006, Rivas said the Respondent lived with her for two more days Rivas claimed she was neither threatened nor felt the need to call the police during these two days

Rivas said she cleaned different parts of the house daily She would mop and sweep the apartment every three or four days She did her and her children's laundry and occasionally, about once a month, she did the Respondent's laundry as well She acknowledged that she recovered the spent bullet in the Respondent's laundry basket Rivas said that there were three baskets one for her, one for the Respondent and one for the children After recovering the spent bullet from the Respondent's laundry basket, Rivas moved the basket to the garage She acknowledged she recovered the spent bullet in June 2007

Rivas acknowledged the bookcases were not moved since May or June 2006 Further, she again acknowledged that in between the bookcases she had placed some dumbbells and her workout mat In addition, there was an electrical outlet into which the

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phone adapter was plugged. She also stated that her house was not painted or repaired from May 2006 to June 2006. She acknowledged that the police searched the apartment three times, but limited their search to the living room and dining room areas. She added that the area including and surrounding the bookcases was never searched.

Rivas acknowledged that she filed a DIR (DX 15) and a family court petition [Respondent's Exhibit (RX) A, copies Family Offense Petition and Order of Dismissal, both dated January 5, 2007] against the Respondent. She said it was required in order to obtain an order of protection. In the petition, Rivas stated that the Respondent had punched a hole in the wall with his fist while she was standing against the wall. Rivas, however, claimed she did not give this information to the police in December 2006 because she was only asked if the Respondent had ever "hit her" or "place[d] his hands on her."

Rivas acknowledged that on the day of the incident, after the Respondent discharged his firearm, she and the Respondent struggled over the phone. Further, she said the Respondent had his firearm in one hand and grabbed both of her hands with his other hand while she held the phone. She also said the Respondent did not make any threatening remarks. Also, Rivas agreed that she wrote on the DIR, "I waited until December to contact Internal Affairs because of finances." Moreover, Rivas agreed that she stated on the DIR that she did not recover the bullet, that she did not want the Respondent arrested and that she did not fear for her safety.

When asked if she was making accurate statements in the DIR, Rivas said "I wasn't thinking accuracy when I wrote it down, I was more thinking of filling it out." She admitted she was inaccurate in saying that she waited until December to contact IAB.

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because of finances. She said "I was concerned with my finances, my livelihood, my resources of how I was going to continue to make it with my children, but that wasn't the sole reason." Rivas said she was prompted to call the police the second time because she was involved in a verbal argument with the Respondent and because he threatened her.

Rivas acknowledged that the petition that she filed on January 5, 2007, was dismissed, but denied that it was dismissed because of her failure to appear in court. Upon review of the family court petition (RX A) by the Court, it was determined that there is nothing indicating a court appearance date. However, in January 2007, Rivas was not aware that the petition was dismissed. She said she re-filed the petition because there was an issue with the visitation rights for Jasmyn. The Respondent had filed for visitation in a Bronx County court, whereas Rivas filed it in a Queens County court. In addition, she said the Family Court judge wanted Rivas to combine the visitation and the order of protection hearing so that they would be on the same day. The second petition was filed on February 5, 2007 (RX B, Family Offense Petition dated February 5, 2007).

Rivas acknowledged that the January 2007 petition was dismissed the same day it was filed. She asserted that she filed the petition, waited a while there, but then had to leave to pick up Jasmyn. In the January 2001 petition, Rivas stated that the Respondent punched a hole in the wall in July 2006, but in the February 2007 petition, she said the hole was punched on "August 29" but did not indicate the year. She said at this proceeding that she was not sure about the year but knew "it was around the summertime" and before the May 2006 shooting. The hole was made in the bathroom.

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wall of her apartment. She never told the police about the hole while they were searching her apartment.

Rivas again acknowledged that, at the time of the incident, she was living with the Respondent. Rivas' mother lived on the first floor, and the landlady lived on the third floor and had a home care attendant. The apartment is in a commercial neighborhood and across the street from her building was an auto repair shop. The firearm was discharged in the living room, an area that is "24 x 10," next to the dining room, an area that is 12 x 8 ". According to Rivas, no one in the building reported hearing the gunshot. Rivas acknowledged that she knew the Respondent kept his firearm in a closet.

Rivas testified that in December 2006, two days after the Respondent was placed on modified duty, the Respondent asked Rivas if the police searched the entire house and the bookcases. Rivas then told Roberts about this conversation and a search of the bookcases was conducted. When asked if she recalled saying, "I was four or five feet away [from the bookcase]" in the criminal trial, Rivas maintained she did not remember whether it was from the tall or the short bookcase that she was "four or five feet away." She again testified that the small bookcases were 18 inches apart and that the incident took place in May or June 2006 and the bullet was recovered in June 2007. Rivas did not discover the bullet hole until a year later. She admitted mopping the area in front of the bookcase but not in between them.

When asked if she was "four or five feet away" from the bookcase again, Rivas said she was much closer, about one to two feet away, and approximately ten feet away from the Respondent.

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Rivas stated she neither used the electrical outlet in between the bookcases nor used the exercise mat that was stored between the bookcases. Additionally, the police, during their investigation, did not search that area.

Rivas testified that she was having a yard sale in which she was selling pieces of her furniture. She sold her sofa and arranged to have it picked up. As she was clearing the hallway, she moved the bookcases and discovered the bullet hole. Rivas averred that some of the books in the bookcase were standing and some were laying on their sides. She acknowledged that damage to the books does not match the hole in the bookcase.

Rivas stated that she was not denying the Respondent visitation rights to their daughter, and that she was aware the Respondent filed a petition for visitation on December 28, 2006 (RX E, Petition for Visitation, dated December 28, 2006). She said she was not upset with the Respondent for filing the family court petition. She did, however, acknowledge that she was upset with the Respondent when he went on vacation in December 2006.

Rivas agreed that in December 2006 she told the investigators that “[the shooting] happened immediately, I smelled smoke, I heard a shell fall,” and that in the second family court petition, filed in February 2007, she stated, “I heard a shot go right by my head.” She also acknowledged that her testimony at this trial, that after the shot was fired the Respondent was standing, pointing a gun at her with his arm extended, was consistent with the account of the story she gave to the police investigators on December 14, 2006 and to the grand jury on July 2, 2007. Rivas agreed that this version is different than her testimony given on November 6, 2008, in the Respondent’s criminal trial, where

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she testified that after the shot was fired, she looked at him and "saw him rise " She agreed that her testimonies at the criminal trial and the instant proceeding were different

Rivas testified that neither her mother nor her sister had keys to her home but Rivas apartment door was generally left open for her mother (who lived downstairs)

On redirect examination, when asked what her motivation was for calling Transit District 12 on December 14, 2006 Rivas said

My concern was what would be [the Respondent's] state of mind upon returning from Florida, and if her was – he would, I guess, you know, after the argument when he said the only way one of us would be free from one another was if one of us was dead, so I was going along with that, what kind of way am I going to be rid of

Rivas testified she owned a power drill in 2008, after the Respondent left the residence She denied drilling a hole in the bookcase or in the books which are now in evidence (DX 18, three softbound books with damaged pages and/or covers) Regarding the DIR which she filed on December 15, 2006, but dated December 14, 2006, Rivas asserted that she filled out the second page of the DIR and the first page was filled out by Roberts She again acknowledged that she did not mention the incident where the Respondent "punched the bathroom wall because that was a separate and unrelated occurrence

Rivas admitted using the word "shell" to describe the shell casing because she learned what it meant by hearing the police investigators use the term Rivas clarified that when she referred to the term "finances" in the DIR, she was referring to her and her daughters' "welfare " She stated she received the Respondent s visitation petition in January 2007 Rivas again acknowledged that her own petition filed on January 5, 2007,

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was dismissed because she left the courthouse to pick up her daughter. Rivas returned to family court for a second petition on February 5, 2007. Rivas maintained that the signature on the petition was not hers. Subsequent to the petition, Rivas received a temporary (three-month) order of protection against the Respondent (DX 16).

Rivas was aware the Respondent was granted a temporary order of visitation on September 11, 2007 (RX D, Temporary Order of Visitation, dated September 11, 2007). On March 28, 2008, Rivas filed a petition for custody of Jasmyn (RX C, Petition for Custody, dated March 28, 2008). Rivas denied not allowing the Respondent to see Jasmyn. Rivas said that from December 28, 2006, to January 2007, the Respondent had not asked her to visit Jasmyn.

Rivas stated that when the Respondent returned from his vacation, on December 14 or 15, 2006, he asked her if the police investigators searched the bookcases. Rivas thought he was referring to the tall bookcases. Rivas acknowledged that from May 1, 2006, to June 20, 2006, she neither moved any of the books in the bookcase nor saw any sawdust accumulation near the bookcase as she was cleaning around it.

Rivas agreed that her mother was not aware that the Respondent kept his firearm in the closet. Since Rivas' mother wanted to avoid the Respondent, she would go to Rivas' apartment when the Respondent was not home. Further, she said her landlady, who lived on the third floor, did not have a key to her apartment and did not have permission to go into the apartment when Rivas was not home.

On re-cross examination, Rivas again acknowledged that when she went to family court in January 2007, she filled out an "intake sheet" in which she told her story. She testified that she did not remember whether she saw the hole or the sawdust first and

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acknowledged that the investigating officers showed her the sawdust accumulation inside the bookcase. Rivas stated that her apartment is under her name and there is no formal lease. She again acknowledged that the owner of the building lives on the third floor and does not possess a key to Rivas' apartment.

Sergeant Karen Roberts

Roberts has been with the Department for 19 years. She is currently assigned to IAB Group 22, where she has worked for four years. Prior to that, she was assigned to the 44 Precinct Domestic Violence Unit where she investigated domestic violence cases.

On December 11, 2006, she was involved in an investigation regarding an allegation that the Respondent had fired his weapon at his girlfriend, Rivas, during a domestic dispute. The investigation began as a response to a call made by Rivas to Transit District 12 in which she claimed that her boyfriend, the Respondent, had fired a shot at her. Based on Roberts's investigative report, the Respondent was modified on December 15, 2006, at about 12:30 a.m.

On December 14, 2006, Roberts conducted an initial interview with Rivas. Rivas told Roberts that in June 2006, the Respondent had fired a shot at her, but that she had not reported it because the Respondent was going to go to counseling. Roberts believed Rivas to be truthful and cooperative throughout the interview, even though she seemed scared and very hesitant at the beginning.

Following the interview, Roberts and her partner, Sergeant Eric Vasquez, did a preliminary search of the apartment in which they looked at the far wall near a tall bookcase between the two windows, where Rivas had indicated the incident had

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occurred During the preliminary search, Roberts examined the bookcase but did not remove the books In addition to conducting her own search, Roberts watched ESU search the living room area and the bookcases Neither Roberts nor ESU found evidence of "ballistic significance" at the scene

Roberts did not search the small bookcases (DX 17) because she believed that the bullet had gone in a different direction based on the information provided by Rivas that she was bent down in front of the large bookcases that were against the wall in between two windows when she heard something whiz by her head, then she turned and saw the Respondent pointing the gun at her At the time that Roberts examined the taller bookcases, they were located where the table is in a photograph which depicts Rivas' apartment showing two smaller bookcases against a wall on the left foreground, then in the middle of the photo is Rivas kneeling in front of both the wall and a table and in between two windows (DX 7, DX 7A) She did not examine the two smaller bookcases that are in the foreground of the photograph

On January 1, 2007, Rivas reported that she found something in the Respondent s laundry basket When Roberts responded to Rivas' home two days later, Rivas handed her what she recognized to be a shell casing³ Subsequently, Roberts conducted a second search Robert's removed all books from the tall bookcases and again came up with a negative result

On June 20, 2007, Rivas told Roberts that she had discovered a hole in one of the smaller bookcases when she was preparing to sell some of her furniture Roberts responded to the home where she observed what she believed to be a bullet hole ECT

³ In later testimony the Respondent s counsel challenged the accuracy of Roberts' depiction of the item Rivas found as a "shell casing in the laundry basket" Roberts clarified that that statement was inaccurate and that she in fact, never found a shell casing but instead found a spent round

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also responded to the home and took pictures of the smaller bookcase with the hole in it. This smaller bookcase was never previously examined in the three times that Roberts had visited the home.

Roberts testified that Rivas told her that she did not report it because she and the Respondent had talked and that he said he was going to go to counseling. She also did not want the Respondent to be arrested because she was afraid that nobody would believe her and there was no evidence. However, after finding the hole in the small bookcase, Rivas cooperated and pressed charges against the Respondent. Roberts believed that finding the bullet hole is what led Rivas to cooperate in coming forward.

After investigation, Roberts discovered that the gun was actually discharged on May 1, 2006, and, according to her phone records, Rivas had called Transit District 12 on May 2, 2006, for about nine minutes. Roberts was unable to identify who Rivas spoke to during this phone call, even after interviewing a Police Officer Santiago and a few others from Transit District 12.

Roberts testified that there was no evidence or indication that the Respondent had notified the Department, his patrol supervisor, or IAB regarding the discharge of his firearm.

On cross-examination, Roberts elaborated on her experience and training. She had not conducted investigations prior to joining IAB, however, she had received two weeks of training. In other training sessions, she was taught how to prepare cases and write accurate reports.

Roberts explained that her initial interview began as a result of the call Rivas made to Transit District 12 on December 11, 2006. She acknowledged that this date was

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nearly six months after the incident had occurred Roberts confirmed that she did fill out a DIR in this case even though Rivas had told her that there had not been any previous incidents of violence in the home

In recounting how Rivas explained the incident, Roberts described that Rivas said she heard a bang, not a shot, and was unsure of what had happened until she turned around to see the Respondent pointing a black firearm at her She confirmed that Rivas described the gun as a "black gun " Roberts admitted that the gun that had been vouchered in the case (DX 1, Property Clerk Invoice, dated December 15, 2006) had a "black handle" but a "silver body," and if one held the gun, you would see that person's hand where the black would be

The DIR contained a handwritten statement from Rivas indicating that the Respondent went to the closet in the hallway and fired a shot Roberts was shown a photograph of a long hallway with two small bookcases against a wall in the right foreground (DX 8) In the background of the photograph, along the same wall are three doorways, the first is an open entrance to the kitchen followed by two other doors, the closest being the closet referred to in the testimony, then another unidentified door Opposite these doors is the front door to the apartment At the end of the hallway in the center is a bedroom door Roberts explained that the gun was found in the closet that is in the hallway opposite the front door to the apartment After its recovery the gun was vouchered, and remained vouchered until the Respondent's criminal trial on November 10 2008

The Respondent told Roberts and Vasquez that the gun was located in the closet, where it was subsequently recovered Although the gun was in a holster at the time of

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recovery Roberts did not believe that the gun had been in a lock box or that there was a trigger lock on it. Basically, the weapon was just sitting on the top shelf of the closet. The Respondent was not arrested on the night the gun was found since Assistant District Attorney Hill and Attorney Lester Paverman determined that there was not enough evidence for an arrest.

Roberts explained that she was not concerned by Rivas' story since sometimes those in domestic relationships do not report things right away. However, she had never investigated a case where a woman did not report a shooting incident six months after it had happened, until this case.

Roberts confirmed that Rivas had called Transit District 12 anonymously, she did not identify the shooter, did not feel an order of protection was necessary, did not want to press charges when given the opportunity at the District Attorney's office, and continued living with Respondent for six months after the incident. Additionally, Rivas refused to assist Roberts in conducting a controlled call. Roberts was not alarmed by these factors since Rivas seemed frightened and afraid, and was worried that she would not be able to take care of her house given that she did not have a job and relied on the Respondent's income. She believed that Rivas' unwillingness was a common pattern in domestic violence cases, not a concern for truthfulness.

Since this was a shooting investigation, Roberts explained that it was important to take into consideration where the shooter and the victim were standing, and trajectory. Rivas told Roberts that she was between the windows, while the Respondent was close to the small bookcases, but not as far back as the closet. The way Rivas explained the position of the Respondent in the DIR was that he was close to the closet. But, when

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explaining his position to Roberts, she explained that he was up a bit further than the closet door, with the small bookcases still in front of him. Based on that finding, Roberts conceded that the round could have been anywhere between the Respondent and Rivas. At some point, Roberts determined that the bullet hole was at the front of the bookcase. However, she reiterated that nobody had discovered the bullet hole on the wood trim or anywhere in the living room during the December 14, 2006, searches. Additionally, Rivas did not report that any painting or repairs had been done that might have covered up the hole. The landlady also confirmed to Roberts that no repairs had been done in Rivas apartment except for kitchen tiles.

Roberts testified that a gunshot going off at 11:00 a.m. in the living room would probably make a very loud noise, but nobody had reported hearing a shooting.

In January 2007, Roberts performed SPRINT⁴ checks from May to June 2006, to see if there were any reports of shots firing; there were none. Although the bullet was allegedly found in the laundry basket in the bedroom, Roberts did not extend her search there. Then, again in January, Roberts learned that the bullet she recovered was fired from the Respondent's off-duty Kahr gun (DX 4, Microscopic Analysis Report, dated January 5, 2007).

At the time that Rivas found the spent bullet inside of the laundry basket, Rivas told Roberts that she had not had any problems with the Respondent. Then, sometime between when the Respondent filed for visitation rights (the visitation paperwork is dated December 28, 2006) and Rivas discovered the bullet (January 3, 2007), Rivas obtained an order of protection against the Respondent.

⁴ Special Police Radio Inquiry Network

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Rivas had told approximately four other people about the incident her therapist, Hector Aponte, Melinda Jimenez, and Rivas' sister Roberts talked to each of these individuals, except for the therapist because Rivas would not give consent to waive confidentiality

Roberts described what Aponte told her, that Rivas said the Respondent fired his weapon at her in June 2006 and the bullet hit the wall Roberts conceded that Rivas did not tell her the bullet hit the wall during her investigation, and had originally told her that the incident occurred in May, not June

Jimenez told Roberts that the Respondent had put a gun to Rivas' head in the summer of 2006, then a few days later, fired a shot at her Again, Rivas did not report this to Roberts Neither Aponte nor Jimenez had ever heard Rivas say that the Respondent physically abused her prior to these instances

Roberts also interviewed Rivas' sister nearly two months after Rivas found the [spent bullet] Rivas told her sister that while she was in the living room, the Respondent went to the bedroom, then she heard a shot and smelled smoke Later, Rivas' sister was told that the bullet struck the bookcase in the living room Although Rivas' sister was in the apartment two hours after the alleged incident occurred, she did not report smelling gun smoke

Rivas told Roberts that she had called Transit District 12 in June 2006, after the incident The records indicate that the call actually happened on May 2, 2006 Santiago did not remember speaking with Rivas, and the Court has no way of finding out what the actual call was about on May 2, 2006

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Between January 2007 and July 2007, Rivas did not have any problems with the Respondent that were reported to Roberts. On June 20, 2007, Rivas decided to press charges. The Respondent was indicted on July 19, 2007, and arrested on July 23, 2007. Roberts closed her investigation on December 27, 2007.

Roberts conceded that she backdated the incident report to the day that Rivas had reported it, December 14, 2006, instead of the day it was signed, December 15, 2006.

Roberts stated that the hole in the bookcase appeared to be a bullet hole. She conceded that she was not a criminologist, but her opinion was that the hole purported to be from a small bullet based on the way that the penetration went through the books. She did not know whether the hole could have been caused by something other than a bullet.

On re-direct examination, Roberts clarified that Rivas was unable to tell her where the Respondent was standing at the time that she heard the bang. Additionally, she stated that the bullet hole found in the small bookcase could be categorized as on the side of the bookcase, as opposed to being on the front trim.

Roberts agreed that it is common, from her experience as a police officer, for a gunshot to go unreported to the police. Rivas did not tell Roberts of prior incidents of abuse that may have occurred, however Roberts identified that this is common in many domestic abuse cases.

During the investigation, Roberts did not search the hallway, or the laundry basket for a bullet hole. When Rivas told her about the article found in the laundry basket, Roberts came to the house and was physically handed the spent round, not the shell casing. She did not search the laundry basket.

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On re-cross examination, Roberts admitted that she looked at the laundry basket, but did not see anything out of the ordinary. She conducted a search of the living room and the hallway.

Detective Nicholas Petraco (retired)

Petraco joined the Department in 1968 and was assigned to patrol in the 19 Precinct. In 1974, he began working in the police forensic laboratory and dealt with narcotics and criminalistics until his retirement in 1990. During his years with the Department, Petraco earned a Bachelor's Degree in Chemistry and a Master's Degree in Forensic Science from John Jay College, City University of New York. He has also taken numerous courses in the examination of physical evidence, including the studies of glass, gunshot residue (GSR), paint, tool marks and jigsaw matches. Petraco has testified over 500 times in various New York State, federal and out-of-state supreme courts. He has been established as an expert witness in forensic analysis during his testimony in these various jurisdictions, with four textbooks, nine book chapters and over 50 articles in scientific journals aimed at forensic science issues. Petraco has stayed up-to-date on the science applicable today. He is currently a contract consultant with the Department and was deemed by the Court to be an expert in the area of forensic analysis.

When Petraco became affiliated with the Respondent's case in October 2008, he received a bookcase and three books (DX 17 and 18, respectively, DX 3, Property Clerk Invoice, dated June 20, 2007) and a spent round from the ballistics section (DX 10 photograph, DX 2 Property Clerk Invoice, dated January 3, 2007) [the Court had a spent round in evidence from a prior proceeding of the same case]. The questions presented to

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Petraco were (1) whether the hole in the bookcase was a bullet hole, and if so, (2) whether the bullet he received from ballistics could have made such a hole

Petraco testified that he examined the material in the hollow point part of the bullet under a brightfield polarized light microscope. He subsequently examined the hole in the bookcase with a stereo microscope (used to look for tool marks or to prepare specimens in three dimensions) and compared the configuration there to that of the bullet. Petraco said he tested the peripheries of the hole for residue with a reagent known as sodium rhodizonate and mixed the result with hydrochloric acid. To test for lead residue he looked at the morphology of the hole, conducted chemical tests and then took measurements. Petraco also stated that when he began photographing the bullet, he noticed much fibrous material lodged inside the hollow point. He testified that the fiber of the bookcase was comprised of two primary kinds of materials. The outer molding, he said, was a pine wood, whereas the main body and shelving was a composite material with a veneer encasing it. Petraco concluded that upon extracting and sorting of the material in both the bookcase and the bullet, the materials were "[b]asically, the same stuff."

Petraco agreed the books (DX 18) were damaged, saying that damage was likely caused by impact from a bullet. He also noted that some material on the top of the bullet was consistent with the color of the books' pages. He admitted to not going into detail in the examination of that material, however. Petraco stated he looked at the bookcase with the naked eye, a magnifying glass and a stereo microscope. He also took the bookcase apart to find anything he might have missed. Then he conducted chemical tests and

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found the bullet's entrance and exit holes. Petraco discovered the bullet's path started from outside the case and then proceeded inside.

Upon questioning by the Court, Petraco explained how the bookcase material was compressed around the hole, with traces of bullet-striking. Those strikings were in the form of skid marks and frayed particle board. Petraco went on to say "Most probably the bullet made that skid mark." It was also his opinion that the bullet must not have left the bookcase because there were no signs of exit. Petraco guessed the bullet ended up stuck in one of the books that were damaged. He explained to the Court the elongated holes and graze markings in the books were indicative of bullet holes, through Petraco's use of sodium rhodizonate and hydrochloric acid, he discovered lead residue on the damaged areas of the bookcase and the books further indicative of bullet holes. He found similar exposed lead on the slightly mushroomed hollow point.

Petraco then detailed how he used a ballistics probe and a protractor to estimate a 60° downward angle of the bookcase hole from the outside. He then observed that all his findings allowed him to conclude the cause of the hole could be the bullet he was also examining. Petraco dismissed other things that could make holes like the one in the bookcase, such as drills and screws, because the lead wipe he found around the hole in the bookcase was foreign to those types of mechanisms.

He also stated in response to questioning by the Department, that the compression type was a hole (found from bullets) rather than a cut (found from drills and screws). Petraco also dismissed that a hole puncher was the cause of the hole because of the sheer power evidenced by the hole is unlike that produced by any hole puncher. He also denied any insect made the hole. Petraco summarized that, "it looked like a bullet went through,

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one bullet made that hole' in the bookcase. He added, 'I am saying the hole that I pointed out in the bookcase is a bullet hole, and that to a reasonable degree of scientific certainty the material making up that bookcase are consistent with the materials found within the hollow point bullet.' He memorialized his findings in a Police Laboratory Analysis Report (DX 5, dated October 30, 2008).

On cross examination, Petraco agreed that he puts all relevant, salient information in his reports and tries to keep them succinct. He also admitted that his testimony regarding the swab, chemicals, and the way he deduced that there was lead present in the hole did not appear in his report. However, he explained that those observations are in his notes. The question was whether it was a bullet hole, and Petraco put the answer in his report. Petraco told the Respondent's attorney that he had in front of him a number of written reports consisting of his own conclusions, along with his notes. He said he also had conferrals made by supervisors with investigators. Petraco had given the papers to the Assistant Department Advocate, who had, in turn given the packet to the Respondent's counsel. Petraco said he had reviewed the materials for trial. He had received the evidence on October 23, 2008. After looking at the case conferral sheet signed by the supervisory head of criminalistics, 'Ms. Faber,' he agreed that the bullet was first vouchered and presented to the laboratory on April 18, 2007.

Petraco then agreed that one of his own notes he reviewed prior to starting his investigation mentioned the name 'Christian Bigsby.' Even so, Petraco stated he did not recall anyone by that name. He told the Court that the bullet was in the evidence control room from April to July 2007, and that he did not know what ballistics did with the bullet.

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at that point Petraco stated he conferred with IAB regarding his findings and not the District Attorney's office

Upon questioning by the Court, Petraco said he believed he could perform all the tests he was asked to complete

On continued cross-examination, Petraco mentioned that many of the people who answer the phones in the forensic office are new hires and do not quite know what tests the lab can or cannot perform Petraco then stated that he found out Bigsby was a new hire at the time of his investigation Now, however, Bigsby works for the Medical Examiner's office, said Petraco He also stated that "Ms Meyers" was in charge of the criminalistics section and was his equal When asked what he thought when he read Meyers' note suggesting that the lab does not do what was requested for analysis, Petraco answered that he did not know why she said that because they did do that type of analysis He said that Meyers may have thought Roberts was looking for something else Petraco then explained there were two tests a Griess test and a sodium rhodizonate test He said each was aimed at answering a different question

Subsequently, Petraco stated he asked someone in the lab if he or she recognized the signature on another note That person did not When asked what he thought upon reading this other note advising the bureau chief of the possibility that an unknown substance may not be consistent with anything from the bookcase, Petraco said he was just trying to pick out any consistent material in the bookcase and the hollow point portion of the bullet He also disagreed with a note written by Meyers, in which she doubted the possibility of finding GSR on the bookcase because of the surface and length of exposure time Petraco found a component of GSR – lead He explained that when

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there is no GSR except what is on the wipe, you are supposed to look for lead That is what Petraco did He said either the bullet is made of lead or there is a chemical lead styphnate in the cartridge's primer He continued that after a muzzle flash, the lead vaporizes and is present in the cloud of GSR Also, he explained, the bullet itself will have some residue when it traverses and forms a lead wipe⁵ Petraco said that the presence of a lead wipe is reasonably dispositive in determining if it is a bullet hole He then admitted that not all primers contain lead, and that he did not test the specific primer in his investigation Petraco did not find any lead in the outside of the bookcase The bookcase was pristine, he said, except for the hole He did not know when it had been cleaned last, even when the Respondent's attorney asked if he knew the shot was fired one year before the hole was discovered

Petraco then admitted he knew of a criminalistics employee named "Dinkle" who worked in the office for two or three years He said Dinkle's note expressing her opinion about the complaint did not factor in his mind at all Petraco then told the Court of his general practice of forensics when he first started working there, then his subsequent specialization into the hair and fiber and GSR He said the case may have been presented to him because of the wood fibers being cellulous and having a very low birefringence⁶

Petraco then agreed he did not do any additional tests on the bookcase other than the GSR test he had described He also said he did not do any chemical tests on the material found in the bullet He then said the material in the bullet looked like pine wood. Petraco knew the bookcase was pine because the cellulous material had pits in it just like the fibers in the bullet itself He stated that he looked for differences in the

⁵ Discolored area on the immediate periphery of a bullet hole containing lead

⁶ Double refraction

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materials and only found similarities. From such, Petraco concluded that there was a substantial possibility the materials came from a common source.

Petraco explained how the bookcase was a composite wood made up of different pieces of wood mulched together with a glue product. He also stated that he conducted no interviews nor reviewed any IAB reports during his investigation, he only looked at the conferrals, the request for analysis, and the voucher reports.

Petraco admitted he did not know where the damaged books were during the shooting. He stated he could not say that the books had been hit by the bullet if the books were moved to the bookcase after the time of the shooting.

On redirect examination, Petraco said he was a certified criminalist qualified to do hair and fiber analysis and GSR, but not ballistics. He determined that the fibers in the bullet were consistent with the fibers in the bookcase. He stated that he found lead residue not on the exterior surface of the bookcase but around the peripheries and within the hole. Petraco explained that, even if a bullet hole was wiped with a towel, some lead residue would probably remain in the hole.

On re-cross examination, Petraco agreed that the bookcase had a muslin-type curtain on it. He also admitted that he had no idea who, if anyone shot the bullet he examined.

The Respondent's Case

The Respondent called Lieutenant Selina Rentas and Detective James Griffin as witnesses. The Respondent testified in his own behalf.

POLICE OFFICER PETER AMADORLieutenant Selina Rentas

Rentas, presently assigned to the 28 Precinct, has been with the Department for over 24 years. Before she was promoted to the rank of lieutenant on February 2, 2005, Rentas worked as a sergeant for seven or eight years. Her assignments over the course of her career included patrol, investigation, undercover work and supervisory positions. She conducted investigations in a squad in the Detective Bureau. Rentas took basic training courses for sergeants and lieutenants when she was promoted to each rank, part of that training was in report-writing. As a lieutenant, Rentas handles all clerical supervision. Her desk officer duties include notification and processing of arrests, as well as general platoon supervision. Rentas outlined the duties of a telephone switchboard (TS) operator, usually a police officer, and said he or she is responsible for giving word of allegations against service members to his or her desk officer.

Rentas told of her assignment at Transit District 12, as a desk officer on December 11, 2006. She could not remember the TS operator's name, but did recall that he was an officer. Rentas did, however, know the Respondent to be one of her better officers back when she worked in Transit District 12. She told of a call that was switched to her by the TS operator where a woman "was just asking advice or direction in regards to making a complaint against—I don't know if it was her boyfriend or her husband at the time—who was a police officer. Rentas said that she and the anonymous caller "spoke a while. She basically said that he shot at her. Rentas' command log entries for the day in question (RX G) showed that the call took place at 11:05 a.m. and indicated that the shooting incident took place in June 2006. The caller gave Rentas neither her own name nor the officer's name. Although Rentas did not have the location of the incident in her

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log, she recalled being told it was in the caller's apartment. Rentas testified that she informed the caller of her opportunity to report the malfeasance to IAB, along with giving her their phone number, whenever she felt free to divulge the identities of the parties involved. Further, Rentas notified IAB herself and received a log number from the IAB Command Center.

On cross examination, Rentas stated she thought the caller's reason for not divulging the identities of the parties was out of fear. Rentas did not receive from the caller the address of the apartment at which the incident took place. She said the call lasted between ten and 20 minutes. During that time, Rentas told the Court, she had no interruptions or distractions. When asked if she gave the caller information on getting the officer arrested, getting custody of her children or getting an order of protection, Rentas said she could not recall. She did, however, note that the caller sounded confused, hesitant and not particularly matter-of-fact when speaking.

Detective James Griffin

Griffin has been with the Department for 19 years. He was promoted to detective in February 1999 and was assigned to ESU in August 2002. For work in ESU, Griffin received training in heavy rescue, rope-rappelling, tactics, tools and equipment, and anything that would support patrol functions. He described ESU as a unit serving and enhancing any type of patrol functions with which the ordinary police officer or patrol unit might need assistance. This assistance includes extra tools or special training. Griffin also received training in conducting searches and removing evidence.

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Griffin explained how, when investigating shootings, he first determines the trajectory by looking at which way the bullet went and which way the casing went. He must also account for all the bullets and all the casings to make sure no lives were lost. Griffin agreed that it is important to systematically search areas. In conducting his searches, Griffin uses various items, including a flashlight, a DM-50 saw and a hounding tool. When he arrives at a scene, Griffin first ensures it is safe and secure. Then, he normally asks the supervisor at the scene about the general incident and what type of evidence they are looking for. Lastly, Griffin reports back to his supervisor everything he finds in conjunction with what was requested. He clarified his prior statements by saying he would ask, for example, where the shooter or victim was standing.

Griffin and his partner, Detective Vinny Papasedero, conducted a search of Rivas' home on December 15, 2006. Looking at an ESD 2 report (RX H, dated December 15, 2006), he said it is similar to a complaint report and shows exactly what type of job is being referred to, which day and date it took place on, what ESU truck responded, what was used to conduct the search, which equipment was employed, and what the results of the search were. The report was signed by Papasedero. Griffin recalled responding to the apartment at 1:30 a.m. for a requested evidence search with Lieutenant Dominick Cardinale from IAB. Cardinale told Griffin to look for a ballistic round that was discharged from an officer's gun. Griffin asked where the shooter was standing and it was his understanding that it was an accidental shooting. He did not recall ever speaking with the complainant herself.

Griffin described the apartment as one with construction taking place. He saw a tool box and a hole in the outlet switch on the wall, some furniture and hardwood floors.

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After being shown DX 7A and 8, Griffin recalled that the projectile part of the round was in the vicinity of two bookcases, but not where he was told the shooter was. He said the projectile was "pretty much above the small bookcase," that is, the bookcase shown with the cover pulled up in DX 7A. Griffin searched the small bookcase (DX 17) with a flashlight on the date of the incident. He said the spacing between them on that date was identical to the spacing portrayed DX 7A. Griffin did not see a hole in the bookcase on that date like the one he was being shown in the photograph in court by the Respondent's counsel. The absence of a hole was reflected in his report and signed by his partner, Papasedero.

Griffin testified that the search lasted approximately 40 minutes. At the time of the search, he had been in ESU for four years and had conducted hundreds of searches already.

On cross examination, Griffin admitted that, on the ESD 2, the time of 1:30 a.m. was not the time he arrived at the scene but the time he was sitting in his car and received the call to arrive at the scene. He then admitted the time of completion of 2:10 a.m. means there was a total elapsed time of 40 minutes. Griffin also admitted the report does not list the time he actually arrived at Rivas' apartment. He stated that his truck covers an area encompassing seven to nine precincts, comprising almost the whole borough of Queens. Griffin did not know where in Queens South he was when he heard the call and did not put on his lights and sirens. Griffin admitted that he had no independent recollection of the search or the time at which he arrived but was just relying on his paperwork while on the stand.

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Griffin said he did not know who took the photographs of the bookcases presented in court, but he did agree that DX 7A was a fair and accurate representation of the apartment as it appeared on December 15, 2006. When he arrived at the apartment Griffin was briefed on the events by Cardinale. He told the Court he would look behind where a victim was allegedly shot at because of the obvious trajectory of the bullet. At this point, the Respondent's counsel showed Griffin a diagram of the living space of the apartment (DX 11). Griffin recognized the layout, but admitted to not searching the bedrooms for any bullets or bullet fragments. He did, however, search behind one wall in the kitchen for such items. Griffin explained that there was no exit or entrance hole in the kitchen partition. He recalled conducting a search behind where the complainant was standing as depicted in DX 7A, but did not recall seeing the two bookcases. Griffin said he looked behind the couch and saw no shattered windows.

On redirect examination, Griffin restated that he was told the incident was an accidental discharge, but was told nothing "about an allegation that an officer had taken a shot at his wife."

On re-cross examination, Griffin agreed that the paperwork indicated he and his partner searched the living room but not the kitchen. Though, he said he knew he personally searched the kitchen. Griffin said he never reviewed the report for its accuracy until this date. He claimed that it was accurate, if not complete.

The Respondent

The Respondent first started his career with the Department in July 1990. In 1998, he left the Department to pursue a career in insurance financial services. After

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returning to the Department in 2002 the Respondent was assigned to Transit District 12 where he worked patrol on the trains. He made over 100 arrests while on this assignment, and has been rated an average of 4.0 on evaluations. The Respondent holds a Bachelor's Degree in Criminal Justice from St. John's University. He also submitted a document from the Employee Management Division that indicated that he had been considered but not selected for promotion to sergeant and a memorandum from his commanding officer at the Bronx Court Section awarding him a Commander's Day for "exemplary work" (RX F, dated December 21, 2007 and December 30, respectively).

Around May and June 2006, the Respondent had been living for approximately four years with Rivas, with whom he had a 10-year-old daughter. He described that, at that time, Rivas was his girlfriend, whom he had a "comfortable and polite" relationship with. However, they had experienced some strain due to finances, and had an issue when Rivas accused the Respondent of having an affair. The Respondent stopped living with Rivas on December 17, 2006, because he did not trust her and did not want to be around her anymore.

The Respondent testified that he never shot or pointed a gun in Rivas' direction. The only time he shot his weapon was during either the Spring 2005 or 2006 qualification at the shooting range. He could not testify as to who may have shot his weapon in connection with this case.

The weapon in question was stored without any locks, or trigger guards, in the rear of the top shelf of the hallway closet. The Respondent believed that Rivas knew that the weapon was kept in this location since he told her, and she would see him place it there. He did not know of anyone else who knew where he stored this weapon beside

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himself and Rivas. He did not carry his weapon while off-duty, it would only be in this closet, or in his Department locker if it was not on him.

In May or June 2006, the Respondent and Rivas had a verbal discussion over an affair. The dispute was not physical, and the Respondent testified that he did not threaten Rivas in any way, nor did she express that she wanted to call the police as a result of the dispute. At that time, the Respondent described their relationship as "uncomfortable." He did seek marriage-type counseling for himself and Rivas, but neither went because they could not agree on where to go. For the six months after the original dispute, there were no problems between the Respondent and Rivas. Then, in December 2006 there was another dispute over whether the two would go on a vacation together.

On December 15, 2006, the Respondent's guns were removed and he was placed on modified assignment. Two or three days later, he stopped living with Rivas because he did not trust her and he believed she made a false allegation against him. He did not ask Rivas whether the police had contacted her, or if they had asked about the bookcases. As part of his household chores while living with Rivas, the Respondent would clean around the bookcases (DX 17, pictured in DX 7 and DX 8). He explained that the bookcases were in the same positions in the photographs as when he lived there, the two small bookcases against the wall having a slight space in between them. When the Respondent moved out of the apartment in December 2006, there was no hole in the bookcase. He believed that if there was a hole, he would have seen it. Although Rivas' mother had full access to the apartment and the couple sometimes entertained guests, nobody ever told the Respondent that there was a hole in the bookcase.

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After the Respondent moved, he was not speaking to Rivas, and she did not allow him to see their daughter, so he filed a petition for visitation in the Bronx Family Court (RX E)

On cross-examination, the Respondent agreed that his relationship with Rivas was strained because of money. Additionally, he admitted that he did, in fact, have an affair with another woman. The Respondent was not aware that Rivas had called Transit District 12 on May 2, 2006.

The Respondent did concede that his gun was fired, but he did not know who fired it. He reiterated that his gun was left unlocked and not protected by a trigger guard on the top shelf of the closet even though the front door of the home was often left open. The Respondent said that he never promised Rivas that he would not keep his guns in that closet.

At the time that the Respondent was contemplating counseling, he was not still having an affair with another woman. Although Rivas was already seeing a therapist, the Respondent never volunteered to go with her to counseling. He explained that he continued to try to mend the relationship with Rivas, and that he believed they had reached "a place of forgiveness and understanding."

In May or June 2006, the Respondent reached out to POPPA in regard to questions he had. He did see a counselor through POPPA approximately 10 to 12 times, of which he informed Rivas.

The Respondent's sister and brother-in-law paid for his vacation in December 2006, leaving him with only out-of-pocket "souvenir" expenses to pay. Although he had discussed the option of bringing Rivas and the kids, it presented a problem of added

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expenses, and he felt he needed time alone with his family, who offered to take him but not Rivas nor their daughters

As part of his chores, the Respondent never removed the cloth covering of the small bookcase in order to dust the books that sat on the shelf

The Respondent was asked about the one-page document that is a copy of the case *Dias v Consolidated Edison of New York* with markings on it, dated August 2, 2010 (DX 19) Although the Respondent admitted to finding and printing that paper for Rivas, he did not admit to underlining any particular part, affixing a smiley face to the bottom, or inscribing "FYI" on the document He printed this paper for Rivas at her request because she had expressed that she did not want to testify at the present administrative proceeding

The Respondent admitted that around August 19 or 20, 2010 he text-messaged Rivas following message

On Thursday is the second day of this darn job's trial They r gonna try to give administrative internal subpoena (Which as you saw in the past ruling held no power) or scare tactic Please don't let them bully or strong arm u into goin if u r against bein It would serve me best if you didn't go n let me battle it out with them Wer only with no concern for me, u or Jaz n her very important med issues

However, the Respondent explained that this was his response to Rivas reaching out to him He clarified that this message was sent in the context of Rivas complaining that she did not want to come to the proceeding Additionally, he explained the nature of an allegation within this Department, and the main concerns of the proceedings

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On re-direct examination, the Respondent clarified that what he testified to was only part of numerous conversations with Rivas

FINDINGS AND ANALYSISDisciplinary Case No. 85135/09

In Specification Nos. 1 and 2, the Respondent is charged with being out of residence while on sick report without permission from the District Surgeon or the Medical Division's Sick Desk Supervisor and causing false entries to be made in Department records where he stated to Medical Division personnel that he was going to the pharmacy when, in fact, he did not go to the pharmacy

Based on the Respondent's plea of Guilty to these specifications, he is found Guilty as charged

Disciplinary Case No. 83211/07

The Respondent is charged in Specification No. 3 that he attempted to cause serious physical injury to another person in that he discharged a firearm at Rivas. He is also charged under Specification No. 6, with failing to safeguard his firearm in that he placed said firearm on the top shelf of a closet, unsecured and unattended

The Department moved to dismiss both of these charges. With regard to Specification No. 3, the Department Advocate stated that the allegation that the Respondent discharged his firearm with the intent to cause serious physical injury could not be supported in good faith. With Specification No. 6, the Department Advocate informed the Court that this specification was drafted after the Statute of Limitations had

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expired and a nexus between the discharge of the firearm and the failure to safeguard could not, as originally intended, be made and, therefore, the charges are time barred

Based on the Department's motion to dismiss, Specification Nos 3 and 6 are Dismissed

Under Specification No 1, the Respondent is charged with, on or about and between May and June 2006, while off-duty at his then-home and while living with Rivas, recklessly engaged in conduct which created a substantial risk of serious physical injury to Rivas by discharging a firearm at her He is also charged in Specification No 2 that by discharging his firearm he intentionally placed or attempted to place Rivas in fear of death, imminent serious physical injury or physical injury He is further charged under Specification No 4, that after having been involved in an incident where he discharged his firearm, he failed and neglected to notify and request the response of a Patrol Supervisor, and in Specification No 5, after having been involved in an incident of serious misconduct, he wrongfully failed and neglected to notify IAB

The evidence in this case points to the fact that a 9mm bullet was fired in the apartment where the Respondent lived with Rivas and that bullet struck one of the smaller bookcases in the apartment The Respondent admitted that he kept his 9mm gun in the closet without a trigger guard and not in any type of lockbox He also admitted that his gun was fired, but not by him According to the Respondent, anyone could have taken the gun from the closet but pointed out that only he and Rivas knew the gun was there thereby implying that it was Rivas who fired the shot into the bookcase

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Rivas appeared in court and testified at this trial. She told this Court that sometime after they moved in together, their relationship began to change. She suspected he was seeing other women and described him as becoming more "secretive," because he was making unexplained cellular phone calls, and packing overnight bags and telling her that he had to work mandatory overtime. The relationship became further strained because of financial issues—he did not live up to his agreement to pay for food, children's clothes and household items. Then, in November 2005, a woman called her and told her that she and the Respondent had been in a two-year relationship while he was with Rivas and the woman also told her that she was pregnant.

To add to their already strained relationship, she told this Court that on May 1, 2006, at approximately 10:00 a.m.⁷, while she was doing her school work, the Respondent received a phone call from a woman. Rivas could hear the woman's voice and heard him tell her that he was with 'Yolanda,' leaving Rivas to believe that he was warning the woman that he was with her and could not talk.

The Respondent attempted to explain to Rivas that the woman was a friend who Rivas knew to be Tina. Rivas, however, told the Respondent that he did not have to warn his girlfriend of Rivas' presence and, with that, he got angry. According to Rivas, he then knocked her school papers off of a table and walked to the closet. Rivas backed away from him because she was nervous and proceeded to bend down on her knee⁸ to pick up the papers.

⁷ At first Rivas was not sure if it was May or June of 2006, but Roberts' investigation found through the confirmation of Rivas' initial phone call to the Department that the incident occurred on May 1, 2006.

⁸ Rivas was not sure if it was her left or right knee.

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She could hear him open the door to the closet because the door squeaks, but did not see him because her left side was facing him while she was kneeling to pick up the papers. She also was not looking at him. She stated that she was frightened because of the way he reacted and was thinking that she should not say a word. She then heard a loud 'pop or a boom' and at the same time she felt "wind near" the left side of her head and felt something go by the left side of her face. "The pop and the wind was almost simultaneously. It was pretty loud. I was stunned, so I wasn't really thinking. Not like it went right by my ear, just the whole feeling was towards my left side. I was more shocked. I slowly got up." Rivas then heard something fall to the floor and make a "clinking" sound "about three or four feet from my left." This Court finds that the clinking sound would be consistent with the bullet casing being ejected from a 9mm gun, the gun in this case was the Respondent's 9mm Kahr. She also noted that the Respondent's closet was to her left, at a right angle.

When she looked up at the Respondent she saw that he was standing approximately 10 feet from her and "was pointing at me with his gun, following me with his gun." She explained that as she was walking backwards and to his right, the Respondent was following her with his gun. She then told him she was going to call 911. At that point they both reached for and struggled for the cordless phone. He was successful in getting the phone from her and with that she said that he told her he was sorry and that he would never hurt her. She said nothing else was said and at one point he told her that if she did call 911 "it would ruin everything." He then promised to call POPPA, a counseling program available to members of the Department.

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One challenge to Rivas' credibility is that she did not report this matter immediately. As noted above, however, she apparently tried at the time the shot was fired but lost the struggle for the phone. Her credibility was further supported by the fact, and confirmed by Roberts, that she did call the Department on two occasions: once a day after the incident happened in May 2006 and again in December 2006. During both of these phone calls, she did not provide the Department with any information as to the shooting or any information about herself. The reasons she gave for not disclosing this information were understandable to this Court and reasonably consistent with her statements to Roberts in that she "was torn," was still in the same predicament, had no other recourses, had no employment [and] had nowhere else to go." Roberts also testified how frightened Rivas appeared to her and how she was concerned about paying the bills without having a job while attending college. In addition, while citing her experience with the Department in domestic violence and IAB, Roberts had no concerns regarding Rivas's version and pointed out that when "you are speaking of someone that's in a domestic relationship sometimes they don't report things right away." Roberts also confirmed that when Rivas called Transit District 12 on December 11, 2006, she spoke to Rentas seeking advice in regards to making a complaint against her boyfriend/husband who had taken a shot at her.

In further support of her testimony are the statements Rivas made in her DIR. In that, she noted that she did not want the Respondent arrested but that she did want the incident "recorded." At that point in time, she had not recovered the bullet and said she was not in fear for her safety.

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Another challenge to her credibility is that the bullet was not found until January 1, 2007, and the bullet hole in the bookcase was not discovered until June 20, 2007. Rivas stated that on January 1, 2007, she and her mother were removing the Respondent's clothes from his clothes hamper located in the bedroom closet and putting them in a bag because the Respondent stopped living there as of December 17, 2006. At one point, her mother saw something shiny at the bottom of the hamper that turned out to be a distorted 9mm bullet. Rivas took the bullet, put it in her pocket and later turned it over to Roberts on January 3, 2007.

On June 20, 2007, Rivas found the bullet hole in one of the smaller bookcases. At that point, she only saw sawdust on her books and, without looking further, she called Roberts.

As previously stated, the Respondent pointed out that Rivas was the only other person who knew where he kept his gun and by implication that she was the one who fired the shot. It was also argued that there was no hole in the small bookcase when the police first searched the apartment.

In response to the notion of her firing the shot, this Court finds that an important aspect of Rivas' first call to Transit District 12, in May 2006, was that she was calling in regards to something important. That call was not made to complain that the Respondent was seeing other women or not keeping up with the bills. It was made because something more serious had occurred -- a gun was fired in her home. This Court, therefore, concludes that she did not fire the shot and make up a story afterwards because first, she would have had to fire the shot prior to her call in May 2006 and second, if she had pulled the trigger she would have had to know where she fired the gun at -- namely at the

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smaller bookcase. She would therefore have known about the hole in the bookcase and would have had possession of the bullet as early as May 2006. She would also have had possession of the shell casing which has since disappeared.

Once the police were on the scene in December 2006, if she had fired the shot, she could have and no doubt would have wanted to strengthen her version, not weaken it, so that the police would have easily found the bullet in a place consistent with the hole in the bookcase, rather than waiting another period of time to tell the police that she found it in his hamper, and wait still longer to bring to their attention the hole in the bookcase.

Based on this scenario, this Court finds that it is highly unlikely that Rivas fired a bullet at any time during the period from May 2006 through June 2007. With this finding in mind, the only other person who knew where the Respondent's gun was located was the Respondent.

This Court further finds that Rivas' version was credible where she stated that she heard a "boom" and felt something go by the left side of her head and then saw the Respondent point his gun at her in a threatening manner. This was not an everyday occurrence and this Court finds her credible when she said she was in shock at what just occurred.

Based on Rivas' description of what she felt at the time of the shot, Roberts had difficulty in locating the bullet hole because she was relying on that part of Rivas' account about something going past the left side of her head. This caused Roberts to concentrate her focus on the wall that was behind Rivas, where her dining table and large bookcases were located. Roberts never paid serious attention to the smaller bookcases because, to her, they were not in the line of fire. There was no evidence presented to

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explain or justify how Rivas could have felt the wind go by her head and this Court has no concrete explanation to offer. As the evidence shows, the bullet did strike the smaller bookcase and the books on its lower shelf. There was a dust cover hanging down over the books and one possible explanation is that after the bullet struck the books the force could have blown out through the dust cover and that is what Rivas felt. The only reason this Court posits this theory is that once a bullet is fired, any number of events can occur—some that can be explained and others that can not.

Griffin testified that he conducted the search of Rivas' apartment on December 15, 2006. He said that he searched the small bookcase with a flashlight and that he did not see a hole in the bookcase. He stated that the absence of a hole was reflected in his report. Griffin did not recall speaking to Rivas and was conducting the search based on information given to him by Cardinale. He stated that he recalled searching the area where Rivas was standing but did not recall the two large bookcases that were in that area of the apartment behind where she was standing. It should be noted that according to Roberts, those bookcases were present during the period of time Griffin searched the apartment.

The major problem that this Court has with giving Griffin's testimony any meaningful weight is that after failing to remember a number of facts from that search, he ultimately admitted that he had no independent recollection of the search. Griffin was relying on his notes and further admitted that he did not check those notes for accuracy and that his partner, Papasedero, was the one who signed off on those notes.

The Respondent, during his testimony, also noted that in May or June, 2006, his relationship with Rivas was strained due to finances and her issue with him having an

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affair During the same period, when he and Rivas had a verbal discussion over him having an affair, he said that he did not threaten her and she did not say that she wanted to call the police He did seek marriage counseling for them both but neither attended He claimed that for six months after the dispute there were no problems, and then in December 2006 there was another dispute about whether the two would go on vacation together

On December 15, 2006, his guns were removed by the Department and he moved out of the apartment at that time He claimed that prior to him leaving, he would clean around the two small bookcases and claimed that at that time there was no bullet hole in them He did not, however, remove the dust cover on either bookcase in order to dust the books on the shelf He admitted that he reached out to POPPA and saw a counselor approximately 10 to 12 times The Respondent's testimony, in light of the evidence previously highlighted by this Court, falls short of convincing this Court that he did not fire his gun in the apartment in May 2006

The Respondent's further lack of credibility is evidence by him contacting Rivas after she was being summoned to testify at this trial and gave her a copy of a case which indicated to her that she did not have to obey an administrative subpoena and he also text-messaged her and basically asked her not to testify at this trial

The Respondent admitted to sending Rivas the case of *Dias v Consolidated Edison of New York* This is the paper that Rivas was referring to that she said described to her not to obey the administrative subpoena, and the other was an e-mail asking me not to testify " The *Dias* case stands for the finding that a subpoena issued in connection

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with an administrative hearing is "nonjudicial" and therefore noncompliance will not be punished without a judicial order

In this Court's opinion, the Respondent undoubtedly was attempting to prevent a witness, Rivas, from testifying against him at his Department trial. This was no simple gesture to help Rivas, who was reluctant to testify. Instead, this is strong evidence of his consciousness of guilt for firing the shot and a deliberate act to keep Rivas from giving testimony against him. In addition, his attempt to keep her from testifying is supported by his text message to Rivas sent on August 19 or 20, 2010, where he said in relevant part "Please don't let them bully or strong arm u into goin if u r against bein. It would serve me best if you didn't go n let me battle it out with them. Wer only with no concern for me, u or Jaz n her very important med issues [sic]"

The Respondent's concern for firing the shot is also evidenced by Rivas pointing out that, when the Respondent was placed on modified assignment he asked her to tell investigators that his firearm discharged accidentally and he also wanted to know if they had looked at the tall bookcases

This Court, in holding the Respondent responsible for firing his 9mm gun in the direction of Rivas, cannot ignore the totality of the credible evidence presented at this trial. On May 1, 2006, the Respondent and Rivas were having an anger-fueled argument when the Respondent went to the closet where he kept his gun. At one point, he removed his gun from the shelf in the closet and moments later the gun went off in the direction of Rivas. After the shot was fired he was seen facing Rivas with the gun pointing in her direction. The Respondent is not charged with intentionally aiming and shooting it at her, if he had, there probably would have been a different and more tragic result to this

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incident. Instead, the bullet, fired during a heated argument, struck one of the smaller bookcases that were located to his left and in the line of fire between him and Rivas. It is uncontested that his gun had been fired, a bullet hole was discovered in the bookcase and a 9mm bullet was found in his clothes hamper that, to a reasonable degree of scientific certainty, made the hole in the bookcase. He also told Rivas that if she called the police, "it would ruin everything" and even sent her the *Dias* case instructing her that she did not have to obey the Department's subpoena along with his text message asking her not to appear at his trial.

Rivas had difficulty reporting the shooting to the Department, not because she was making up a story but because of the reasons previously stated—that she was concerned not only for her financial welfare but also that she did not want him arrested and lose his job. She also did not know where the bullet hole or bullet was because, as previously pointed out, she did not fire the shot.

This Court, therefore, finds that in firing that shot the Respondent acted recklessly and by doing so he caused Rivas to fear for her safety. Furthermore, after firing that shot he did not, in any manner, notify the Department.

Based on the foregoing, the Respondent is found Guilty of Specification Nos. 1, 2, 4 and 5.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on July 1, 2002. Information from his

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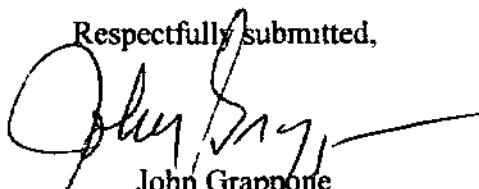
personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum

The Respondent has been found Guilty of the very serious charge of firing his gun in Rivas' direction, which created a substantial risk of inflicting serious physical injury or death to her while placing her in fear of losing her life. While he also was found Guilty of not reporting this incident to the Department and being out of residence while on sick report and giving false information for that event, the most serious and inexcusable misconduct was allowing his gun to fire in the direction of Rivas.

Based on the foregoing, this Court cannot recommend as a penalty anything short of separation from the Department for this serious misconduct.

Accordingly, it is recommended that the Respondent be DISMISSED from the New York City Police Department.

Respectfully submitted,


John Grappone
Assistant Deputy Commissioner-Trials

APPROVED
MAY 17 2011

RAYMOND W. KELLY
POLICE COMMISSIONER

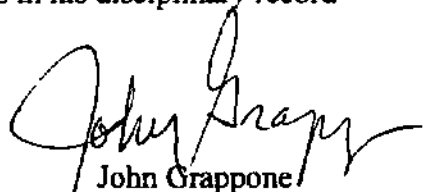
POLICE DEPARTMENT
CITY OF NEW YORK

From Assistant Deputy Commissioner – Trials
To Police Commissioner
Subject CONFIDENTIAL MEMORANDUM
POLICE OFFICER PETER AMADOR
TAX REGISTRY NO 929626
DISCIPLINARY CASE NOS 83211/07 & 85135/09

On the last three performance evaluations contained in his personnel file, the Respondent received ratings of 4.0 "Highly Competent," 4.5 "Highly Competent," and 4.5 "Highly Competent" in 2008, 2009 and 2010, respectively.

The Respondent's disciplinary record indicates that the Respondent, on October 3, 2007, was placed on Level II Disciplinary Monitoring based on his overall record. The Respondent has no prior charges and specifications in his disciplinary record.

For your consideration


John Grappone
Assistant Deputy Commissioner-Trials